



Elections & Referenda Code

The Elections & Referenda Code governs all elections and referenda activities at the UTSU, including Campaign rules, Referenda requirements, elections administration, and more.

Last amended by the UTSU Board of Directors on 18 January 2026.

Current to January 2026.

Elections & Referenda Code of the University of Toronto Students' Union

The University of Toronto Students' Union (UTSU) is a not-for-profit organization incorporated under the Canada Not-for-profit Corporations Act (CNCA). The UTSU functions autonomously from the University of Toronto, and acts as the primary student government for over 40,000 undergraduate students at the University of Toronto's St. George Campus.

You can learn more about how the UTSU operates at utsu.ca/governance



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	AREA	ERC	Elections & Referenda Code
	POLICY	000	Interpretation
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-000 | Interpretation of the ERC

The Elections & Referenda Code (ERC) outlines how elections, by-elections, and referenda are administered at the University of Toronto Students' Union (UTSU) to ensure the process is fair, accessible, and efficient. The following definitions are used in the interpretation of the ERC:

“Advocacy Committee” refers to a group of up to 10 eligible Campaigners campaigning on behalf of a Referenda.

“Campaign” or **“Campaigning”** includes any conduct of and/or attempt by a candidate or individual or organizational supporters to encourage a voter to cast a ballot in favour or in opposition of a candidate, or referenda whether or not Campaign Materials are used.

“Campaigner” means an individual or group who a candidate knew, or reasonably ought to have known, would repeatedly and consistently campaign for a candidate, or referenda.

“Campaign Material” includes any advertisement, blog, design, display, email, flyer, item, literature, poster, public statement or speech, social media tool, website/electronic media, in any form, that is used, created or copied to influence at least one voter to cast a ballot in favour or opposition of a candidate.

“Candidate” is defined as a UTSU member vying for an elected position in a UTSU Election.

“Chief Returning Officer” or **“CRO”** is the person responsible for administering a UTSU Election in accordance with this policy; pursuant to Article 4, Section 9 of the UTSU Bylaws. The CRO shall act as the manager of all other Elections Staff, including any Deputy Returning Officer(s) or DRO(s).

“Declaration of Intent” A prospective candidate must declare their intention to run for office using the Declaration of Intent form before collecting Member signatures.

“Distribute” means the dissemination of Campaign Materials, electronically or otherwise, by a candidate, or a Campaigner, to an individual or group.

“Elections & Referenda Code” and **“Code”** refer to this document, the Elections & Referenda Code of the University of Toronto Students' Union.

“Elections & Referenda Committee” or **“ERC”** refers to the Committee that oversees UTSU Elections administration and documentation.

“Election Periods” are periods of time that Campaigns must abide by:

1. **"Nomination Period"** refers to the period commencing on the first day when members may seek to become nominated for elected office at the UTSU.
2. **"Silent Period"** refers to any period when all forms of public election activities are prohibited, including nominations, campaigning, endorsing, and voting.
3. **"Campaign Period"** refers to the period when nominations have closed, and campaigning activities are permitted.
4. **"Voting Period"** refers to the period when members may cast their votes.

"Fair Play" is a concept that embodies a number of generally accepted community standards that are integral to fair elections. Fair play includes but is not limited to, behaving in accordance with community standards, being respectful of other Candidates and their Campaigns, not engaging in sabotage of the reputation or Campaign of another Candidate, and accurately representing facts.

"Member" or **"UTSU Members"** refers to Members as defined by the UTSU Bylaws.

"Pre-Campaigning" means any Campaign activities outside the Campaign Period. Pre-Campaigning is strictly prohibited.

"Referenda" means a general vote on a single political question that has been referred to them for a direct decision. There are two forms of UTSU Referenda:

1. **"Internal Referenda"** or **"Schedule A Referenda"** refers to referenda put forward by the UTSU Board of Directors.
2. **"External Referenda"** or **"Schedule B Referenda"** refers to referenda put forward by the UTSU members outside the UTSU Board of Directors.

"Social and Digital Media" refers to any and all websites and applications that enable users to create and share content or to participate in digital and/or social networking.

"Spring Election" refers to the general election held during the winter academic session for the purpose of electing new members to fill relevant positions.

"Staff" means employees of the University of Toronto Students' Union.

"Student Residences" refers to any housing provided to students by the University of Toronto, any of the federated colleges and universities, or their partners.

"Student Commons" refers to the building located at 230 College Street, where the University of Toronto Students' Union (UTSU) holds its offices.

"Uncontested Candidate" means a candidate has no other candidates competing against them for the position.

"UTSU-Registered Student Group" refers to a student group or association that is recognized by the University of Toronto Students' Union.

	AREA	ERC	Elections & Referenda Code
	POLICY	001	Scope, Purpose, and Authority
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-001 | ERC Scope, Purpose & Authority

Scope

1. The Elections & Referenda Code governs all elections and referenda-related activities at the UTSU, providing guidance for elections staff and the Elections & Referenda Committee in their management and execution of their duties.

Purpose

2. The purpose of elections conducted by the University of Toronto Students' Union (UTSU) is to give the membership the opportunity to exercise their right to elect student representatives who will become responsible for governing the organization and ensuring the advancement of the organization and its members.
3. The Elections & Referenda Code is written to ensure elections and referenda at the UTSU are to always be executed in a transparent, free, fair, and non-partisan manner.

Authority

4. This Elections & Referenda Code is established by and shall be governed in accordance with Article 4, Section 11 of the UTSU Bylaws.
5. The Chief Returning Officer (CRO) and the Elections & Referenda Committee shall hold the exclusive right to interpret and enforce this Elections & Referenda Code, with the exception of a two-thirds (2/3) vote of the UTSU Board of Directors.
6. The UTSU must conduct elections in a manner consistent with the *University of Toronto Policy on Open, Accessible, and Democratic Autonomous Student Organizations*, as well as any other relevant authorities and legislation.

	AREA	ERC	Elections & Referenda Code
	POLICY	002	Administration
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-002 | Administration

Elections & Referenda Committee

1. The Elections & Referenda Committee shall be responsible for overseeing all UTSU elections, elections personnel, and maintaining this Elections & Referenda Code.
2. Upon a unanimous vote, the Elections & Referenda Committee may vote to overrule previously-binding decisions made by the Chief Returning Officer.
3. The Elections & Referenda Committee shall recommend a schedule of elections for approval by the UTSU Board of Directors prior to the beginning of each election, and subject to notice requirements established by the UTSU Bylaws.
4. Upon the conclusion of an election, the Elections & Referenda Committee shall be responsible for considering and approving the report of the Chief Returning Officer.

Chief Returning Officer & Elections Staff

5. The Chief Returning Officer (CRO) shall be chiefly responsible for the administration of elections, pursuant to Article 4, Section 9, of the UTSU Bylaws.
 - a. The Chief Returning Officer shall report to the Elections & Referenda Committee or a duly appointed manager as determined by the Committee.
 - b. The Chief Returning Officer shall act as the manager of all other elections staff, shall be responsible for enforcing this code, and must submit a final report to the Elections & Referenda Committee at the end of each election period.
6. No elections staff may be members of the UTSU, and must not hold or have held within the last three (3) years a leadership position in a club, levy-collecting group, or representative student society at the University of Toronto.
7. All elections staff shall be considered confidential employees with access to sensitive information, and therefore subject to additional expectations of integrity and fairness.
 - a. The Elections & Referenda Committee shall be solely responsible for ruling on any disciplinary or performance-related matters affecting elections staff.

Information Session(s)

8. Following notice of an election being called, but before the beginning of the nomination period itself, the UTSU shall hold some form of information session or sessions for any members who may be interested in seeking elected office.

Voters' List & Restrictions

9. The voters' list is provided by the Office of the Vice-Provost (OVPS) directly to SimplyVoting, once requested by the Chief Returning Officer.
10. All eligible voters may vote for all available questions, with the exception of the **Vice-President, Professional Faculties**, whose question can only be considered by members of the following faculties:
 - a. First-Entry Professional Faculties:
 - i. (1) Architecture and Visual Studies, (2) Kinesiology, (3) Music, and (4) Applied Science and Engineering
 - b. Second-Entry Professional Faculties:
 - i. (1) Dentistry, (2) Law, (3) Medicine, (4) Nursing, (5) Pharmacy, and (6) the Toronto School of Theology

Voting System & Inquests

11. UTSU elections shall be held pursuant to Article 4, Sections 4, 5, and 6 of the UTSU Bylaws using a secure, online voting system that ensures the security of elections and the sanctity of confidential student information.
 - a. Simply Voting hosted by the University of Toronto.
12. Following the conclusion of an election, the ballot must be certified by the online election provider to have been securely processed and accurately tabulated, and vote data must be made available so that members may audit the results.

UTSU Administrator Neutrality

13. As the administering body of the election, the UTSU and its employees and Board Members are expected to remain neutral during the campaign, and are not permitted to campaign on behalf of or against any candidate running for office.
14. Any UTSU employee or Board Member found to be in violation of this provision will be subject to disciplinary action, as determined by the UTSU's Policies and Procedures.

	AREA	ERC	Elections & Referenda Code
	POLICY	003	Candidates
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-003 | Candidates

Eligibility

1. Only UTSU members, as defined by Article 1, Section 1 of the Bylaws, who meet any of the criteria below, are eligible for seeking elected office:
 - a. Registered full-time at the University of Toronto St. George campus, in a program leading to a degree, diploma, or certificate, are taking the equivalent of a full-time course load at the University of Toronto for the current session, and who have paid membership fees to the UTSU.
 - b. Registered students of the Toronto School of Theology.
 - c. Registered students of the Transitional Year Program.
 - d. Registered students of the Professional Employment Year program.
2. UTSU Staff who wish to seek office must take a leave of absence from the start of the silent period until the end of the Election. Leave of absence expectations will be distributed to student staff (Community Resource Specialists (CRS), Executive Assistants (EA), and Executives (EXEC) as well as Board Members.

Position Profiles

3. Position profiles outlining the roles, responsibilities, qualifications, accountabilities, and salary or pay rate (where applicable) for each position available for election will be posted on the UTSU official website prior to the start of the Nomination Period.
4. Candidates must review the position profiles and job descriptions prior to seeking nomination. Candidates are required to sign an attestation confirming they are able to fulfill the requirements of the position prior to running.

Available Positions

5. The positions elected each year are:

Available Positions	Seats Available
President	1

Vice-President, Operations	1
Vice-President, Public & University Affairs	1
Vice-President, Student Life	1
Vice-President, Equity	1
Vice-President, Professional Faculties*	1
Board Members-at-Large	10

**The VP, Professional Faculties must be a member of a first- or second-entry professional faculty, as defined in ERC-002, 10.*

Nomination Process Requirements

6. Members seeking elected office at the UTSU must participate in a nomination process that is conducted by the Chief Returning Officer and elections staff.
7. No candidate shall be allowed to become a nominee for more than one position within the UTSU in the same election.
8. To be considered as a nominee, an eligible Member must complete and submit a Nomination Package during the Nomination Period indicating the Member's:
 - a. Full legal name;
 - b. Preferred or ordinarily used name(s);
 - c. Age and date of birth;
 - d. Student Number;
 - e. University of Toronto email address;
 - f. Phone number;
 - g. Faculty, college, and/or other division;
 - h. Year of study; and
 - i. Any other information as needed to fulfill compliance-related obligations.
9. Each nominee must obtain at least 25 different nominations from other Members to be nominated. No candidate receiving fewer than this minimum shall participate
10. Only a member of a first- or second-entry professional faculty, as defined in ERC-002, 10, may submit a nomination for the Vice-President, Professional Faculties.

11. Members must submit their nomination using an electronic form that will be made available on the UTSU's website. Their nomination must indicate:
 - a. The legal name, preferred name or ordinarily used name of the candidate they are nominating
 - b. Their full legal name
 - c. Their student number
 - d. Their University of Toronto email address
 - e. Their Faculty, college, and/or other division;
12. The CRO will verify the validity of all nominations.
13. Nominations shall not be accepted following the close of the nomination period. At the discretion of the Chief Returning Officer, requests may be considered to correct clerical errors causing a nominator's information to be invalidated up to twenty-four (24) hours after the close of the nomination process.
14. Candidate Name Guidelines. A candidate must abide by the following rules regarding names when completing and submitting their Candidate Nomination Form:
 - a. **Legal Name:** A candidate must provide their full legal name including any first name, middle name(s).
 - b. **Ordinarily Used or Preferred Names:** At the candidate's request, an abbreviation, or familiar form of a first/last name, or a nickname may be used instead of a candidate's legal name as the "Candidate Name as it will appear on the Ballot".
 - i. This request will not be accepted if their preferred name is already being used by another candidate on the ballot.
 - ii. The CRO may decline the request where it is deemed inappropriate.

Candidate Statements

15. Candidates shall be permitted to submit a candidate statement that will be made equally available by the UTSU to all members voting in an election on the UTSU's website and on the ballot.
 - a. Statements must be no more than 750 characters in length, and must not include any formatting, graphics, or additional adornment, with the exception of links to candidate websites or emails.
 - b. Statements must adhere to the community standards, as indicated in ERC-006 #35.
 - c. Candidates take full responsibility for their statements upon submission.

- d. Candidate statements must be submitted to the CRO prior to the end of the silent period. Late submissions will not be accepted.

All-Candidates Meeting

- 16. All prospective candidates seeking elected office at the UTSU must attend an All-Candidates Meeting prior to the election. All-candidates meetings shall be organized by the Elections & Referenda Committee and the Chief Returning Officer, and shall provide prospective Candidates with any and all information relevant to seeking elected office at the UTSU, including the schedule of elections.
- 17. In an exceptional circumstance, a Candidate may appoint a proxy to attend the All Candidates Meeting on their behalf. To do so:
 - a. The Candidate must be able to fill in their information on the EL-3: Appoint Proxy to Attend All Candidates Meeting Form.
 - b. The Proxy must be a member of the UTSU.
 - c. Proxy forms must be signed by both the Candidate and the Proxy.
 - d. It is prohibited for a Candidate to act as a Proxy for another Candidate at the All-Candidates Meeting.
- 18. Only Candidates who have attended the required All-Candidates Meeting or who have agreed to other alternative arrangements to the satisfaction of the Chief Returning Officer shall be permitted to seek elected office.
- 19. Candidates must sign a statement prior to the Campaign Period that indicates that they understand the rules and regulations governing the election and consent to their enforcement by the Chief Returning Officer.

Confirmation of Candidate Status

- 20. The Chief Returning Officer shall verify the information in the nomination package and Candidate eligibility requirements, and shall inform all nominees of their Candidate status before the start of the Campaign Period.

	AREA	ERC	Elections & Referenda Code
	POLICY	004	Referenda & Advocating Committees
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-004 | Referenda

Introduction

1. In a manner consistent with the governance process of the University of Toronto, the UTSU enables students to vote on certain issues by way of Referendum. Referenda are used to gain an understanding of the Membership's will regarding certain issues.

Restrictions on Referenda

2. Referenda shall only be considered valid when at least five percent (5%) of all members have cast a ballot in favour or against a question.
3. Following UTSU Board approval, the Management Committee of the UTSU must submit all referenda questions for approval by the Office of the Vice-Provost.

Schedule A-Referenda: Internal (UTSU Board of Directors)

4. Whenever the UTSU wishes to determine the opinion of its Membership with respect to one or more issues, including fees, the UTSU may propose a Schedule A-Referendum question to its Membership following a majority vote of the UTSU Board of Directors.
 - a. No signatures need to be collected for Schedule A-Referenda.
 - b. The Elections & Referenda Committee oversees the management of Schedule A-Referenda once approved by the UTSU Board of Directors.
 - c. Referenda for which the UTSU has an obligation to hold, such as questions triggered as a result of past Referenda or questions which are resubmitted to the members on an annual or bi-annual basis, are also considered Schedule A.
 - d. The Vice-President Finance & Operations and the Chief Administrative Officer shall be responsible outside of elections for tending to the UTSU's obligations relating to Schedule A-Referenda, and for providing resolutions and supporting information to the UTSU Board of Directors accordingly.

Schedule B-Referenda: External (Outside Submissions)

5. Whenever a Member or Members of the UTSU wishes to determine the opinion of the broader membership with respect to one or more issues, including fees, they may propose a Schedule B-Referendum question.
 - a. A Schedule B-Referendum question must be solely initiated and advanced by existing members of the UTSU, and prior to appearing on the ballot, must be approved by a majority vote of the UTSU Board of Directors.
 - b. A Schedule B-Referendum question may only be presented to the membership during the Spring Elections held by the UTSU.
 - c. A Schedule B-Referendum question must be submitted to the UTSU Board of Directors along with a petition which has the signatures of at least five hundred (500) UTSU members. Signatures may be collected physically or digitally through tools such as an online form.
 - i. Each signatory to the petition must provide their full legal name, student number, and University of Toronto email.
 - ii. Petitions must clearly present the Referendum question being submitted, so that Members who sign the petition can fully understand the intent and scope of the proposed Referendum question.
 - d. The Elections & Referenda Committee shall supervise the conduct of those organizing and advocating for Schedule B-Referendum.
 - e. The Elections & Referenda Committee shall be responsible for validating the signatures submitted for any Schedule B-Referendum petition. Through random sampling of 40% of the signatories, the Committee shall verify that the signatures submitted match those of eligible members, and may choose to contact signatories to ensure they consented to signing.
 - f. The Vice-President Finance & Operations and the Chief Administrative Officer shall be responsible outside the election period for tending to the UTSU's obligations relating to Schedule B-Referenda, and for providing resolutions and supporting information to the UTSU Board of Directors accordingly.

Rules for Referendum Questions

6. Referenda must be clear, easily understandable, and presented with the following:
 - a. A preamble, explaining the purpose of the Referendum, who it is being brought forward by, and how a "yes" result of the Referendum would benefit the student population of the University of Toronto;
 - b. A main question, presented as unambiguously and concisely as possible, asking students if they are in favour of the proposed question; and

- c. The same question, but presented as two (2) distinct and opposing options, so that there is no uncertainty that a voter is casting a “Yes” or “No” vote and fully understands what a “Yes” or “No” vote represents in relation to the question.
- 7. The Elections & Referenda Committee shall maintain a record of Referenda questions and associated campaign materials to ensure compliance with the University of Toronto's governance process.

Referendum Campaigning

- 8. A group of campaigners campaigning on behalf of a Referendum form an Advocacy Committee.
- 9. Advocacy Committees, in conducting their campaign activities, must abide by the rules of Campaign Management and Activities, as outlined in Sections 005 and 006 of the Elections and Referenda Code.

	AREA	ERC	Elections & Referenda Code
	POLICY	005	Campaign Management & Finance
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-005 | Campaign Management & Finance

Spending Limits

- Any and all expenses related to a Candidate or Referendum Campaign must be authorized by the Chief Returning Officer, and must not exceed the following limits:

Position	Expense Limit
President & Vice-President Candidates	\$500 CAD
Director-at-Large Candidates	\$200 CAD
Internal Referenda	\$1000 CAD
External Referenda	\$1000 CAD

- No outside donations, funding, or other unauthorized assistance may be obtained for the purpose of a Campaign. All spending and resource management must be directly conducted by the Candidate or Advocacy Committee and under the supervision of the Chief Returning Officer.
- All expenses must be documented and reported by each Candidate and Advocacy Committee to the Chief Returning Officer. Evidence of incomplete reporting, overspending, or solicitation of external funding will be investigated at the direction of the Chief Returning Officer.

Barrier-Free Access to Elections

- Members may have their Campaign expenses reimbursed in full, provided that they submit a report of their expenses and receipts to the Chief Returning Officer no later than 24 hours following the end of the voting period.
- Campaigns at the UTSU are meant to be accessible. Prior to and during the election, members may submit purchase-specific authorization requests to the Chief Returning Officer instead of spending on their own and seeking reimbursement later.

- a. The Chief Returning Officer shall be responsible for approving, denying, or seeking clarification for requests within 24 hours of receiving them. If the Chief Returning Officer becomes concerned regarding the appropriateness of a financial request, they may raise it to the Elections & Referenda Committee.
- b. The Chief Returning Officer shall not be responsible for delays with payment methods, but shall take reasonable steps to ensure that the finance department of the UTSU is prepared to handle Candidate and Advocacy Committee requests at volume.

Record Collection

- 6. Members seeking elected office are responsible for maintaining all relevant records, documents, and receipts for expenses at all times during an election.
 - a. At all moments during the election process, Campaign records shall be made available to the Chief Returning Officer on-demand. Prior to the beginning of the Voting Period, all requested records must have been submitted. Failure to provide requested records may result in disqualification or non-payment.
 - b. Campaign records must include, but may not be limited to:
 - i. a budget and inventory for any and all materials, services, and expenses associated with a Campaign, including any and all receipts and invoices;
 - ii. a list of the full legal names, student numbers, and University of Toronto e-mail addresses of the members volunteering and persons providing services for a Campaign;
 - iii. a record of all Campaign Material used during the Campaign
 - iv. a record of each social media account, web address, and Social Media platform and/or space used during a Campaign.
 - v. an estimate of the number of physical materials distributed, an approximate assessment of where on campus those materials are posted, and a plan to remove them at the close of the Election Period.

	AREA	ERC	Elections & Referenda Code
	POLICY	006	Campaign Activities
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-006 | Campaign Activities

Campaigning

1. Campaigning may be defined as any conduct of and/or attempt by a Candidate, Advocacy Committee, or individual or organizational supporters to encourage a voter to cast a ballot in favour or in opposition of a candidate or Referendum. This includes, but is not limited to, the dissemination of any form of promotional materials, content, or petitions that are not solely for nominations.
 - a. The Chief Returning Officer may define appropriate activities as Campaigning, consistent with this Elections & Referenda Code.
2. Any person or entity who a Candidate or Advocacy Committee knew, or reasonably ought to have known, would repeatedly and consistently Campaign for them shall be considered a Campaigner.
3. Campaigning may only take place during the Campaigning Period.
4. The Elections Office must approve all Campaign Material before dissemination.
5. Digital Campaigning must take place on Social Media accounts created after the start of the Silent Period.
 - a. Candidates can not employ more than one account per social media platform to Campaign. Candidates must report each account and username to the Chief Returning Officer prior to being used as a Campaigning tool.
 - b. Social Media accounts must be deleted within 24 hours after the end of the Campaign Period.
6. Social media accounts may be used by members in an election for campaigning, subject to the following conditions:
 - a. 'Reactions', 'Likes', 'Upvotes', and other equivalent forms of engagement shall not be considered campaigning.
 - b. 'Shares', 'Reposts', 'Retweets', and other equivalent forms of engagement, made without additional commentary, shall not be considered campaigning.

- c. 'Shares', 'Reposts', 'Retweets', and other equivalent forms of engagement, made with additional commentary, may be considered Campaigning if they are used repeatedly and consistently, at the discretion of the CRO
- d. 'Posts', 'Tweets', and other equivalent forms of engagement may be considered Campaigning if they are used repeatedly and consistently, at the discretion of the CRO
- e. Cameo appearances promoting a Candidate by well-known individuals or celebrities is not permitted as it invites participation by non-members.
- f. Whether any particular form of Social Media engagement constitutes a violation of the Code is at the Chief Returning Officer's discretion.

Campaign Team

- 7. A Campaign team may consist of a maximum of 10 additional Campaigners, not including the Candidate.
 - a. A member can only be registered as a Campaigner for one candidate.
 - b. UTSU-Registered Student Groups campaigning for a candidate or referenda do not count towards the campaign team limit.
- 8. Registration is required for all Campaigners through the Office of the Chief Returning Officer. Registration must be completed and confirmed prior to any Campaigning taking place. Candidates and Campaigners must ensure mutual consent to participate in a Candidate's Campaign prior to registration.
 - a. Candidates are required to submit the full legal names, student numbers, U of T student email address, and faculty information for Campaign Team members to the CRO by email to cro@utsu.ca.
 - b. The CRO will cross-reference the names of all Campaigners against the list of current UTSU staff prior to the Election.
 - c. UTSU Staff who wish to Campaign on behalf of a Candidate must take a leave of absence until the end of the Election. Leave of absence expectations will be distributed to student staff (Community Resource Specialists (CRS), Executive Assistants (EA), and Executives (EXEC) as well as Board Members.
- 9. Only registered Campaigners on a Candidate's Campaign Team may campaign for them.
- 10. Although outside the control of a Candidate, if a member is not a campaigner and campaigns for a candidate, the CRO may require a candidate to either register the member as a Campaigner, or contact the member to request the removal of all 'posts' made to support them, as well as request the member discontinues campaigning,

and provide proof of these requests to the CRO.

11. As a member of a Campaign Team, a Campaigner may:
 - a. Create or author Campaign Materials, graphics, and posters for circulation (with the Candidates' and the CRO's approval).
 - b. Assist in postering or handing out Campaign Material to others on a Candidate's behalf in authorized Campaign areas on campus.
 - c. Assist the Candidate in strategizing for the purposes of the election.
 - d. Speak on behalf of the Candidate to voters to promote or answer questions about a Candidate's platform.
12. The Chief Returning Officer can hold Candidates responsible for the actions of Campaigners. This applies to all without prejudice.

Advocacy Committees

13. An Advocacy Committee consists of up to 10 campaigners campaigning on behalf of a referendum question.
14. Advocacy Committee campaigners must abide by the same rules and regulations as Campaign Teams, with the following exceptions:
 - a. A member can be registered to campaign for multiple Referendum Questions
 - b. UTSU Staff can campaign for a Referendum Question without taking a leave of absence.
15. A member can be registered to campaign for both a Candidate and Referendum Questions.
16. Advocacy Committees must appoint a single point of contact to communicate with the Elections Office on the committee's behalf.
17. There may only be one Advocacy Committee per Referendum Question.

Participation of Non-Members

18. Only UTSU Members may participate in UTSU Elections, seek elected office, and become Candidates or Campaigners. Non-Members of the UTSU may not participate in UTSU elections or influence the outcome of an election.
19. Non-members who have been contracted by a Candidate for the purposes of providing a specific service that is limited in scope, such as photography, video, or printing services, are not considered Campaigners or participants in UTSU Elections.

UTSU-Registered Student Group Endorsements

20. Only clubs or student groups registered with UTSU through the club registration process can participate in UTSU elections as Campaigners. Club registration must be completed before the start of the Nomination Period.
 - a. Club endorsements may be sought out during the Silent Period, but may not be advertised until the Campaign Period.
21. Clubs may endorse multiple Candidates or Referenda across multiple contests of a given election. They must do so in such a way that does not engage in or promote mutual organization between Candidates. This includes ensuring that posts, stories or equivalent do not contain endorsement for multiple candidates at the same time. Candidates are not permitted to mutually organize in order to secure club endorsements.
22. Club or student group Campaigners must register their endorsement with the CRO by submitting the name of the club or student group registered with the UTSU, using the primary contact email for the club, attesting that a majority of their club's membership wish to endorse a Candidate within the election, and the links to any platforms they intend to use to promote the Candidate. The club's registration with the UTSU must be completed prior to the start of the Nomination Period.
23. Clubs or student groups registered as a Campaigner may post their support of the candidate, and share a Candidate's content on their club social media accounts.
24. Candidates may promote club or student group endorsements on their newly-created, election-specific platforms.
25. Any clubs or student groups who are considered "chapters" or "subgroups" of non-campus organizations, or that are affiliated with partisan political groups, are not eligible to issue endorsements.
26. The Chief Returning Officer can hold a Candidate responsible for the actions of student groups endorsing their Campaign. This applies to all without prejudice.
27. Although outside the official jurisdiction of the CRO, a Non-UTSU registered club that endorses a Candidate in a way that violates the Elections and Referenda Code may be contacted by the CRO to request the removal of an endorsement or a post that names a Candidate. The CRO may also require a candidate to contact a Non-UTSU registered club to request the removal of an endorsement or a post supporting them, and provide proof to the CRO.

Slates, Parties & Cross-Campaigning

28. Pursuant to Article 4, Section 10 of the UTSU Bylaws, there shall be no slates, parties, cross-Campaigning, or any other form of mutual organization between Candidates seeking election as President, Vice President, or Director-at-Large.

29. Individual Campaigners may only support, promote, and advocate for one Candidate.
- a. The Chief Returning Officer, at their discretion, may issue a ruling compelling any member to undo certain actions, issue a statement, or reconcile behaviour that is seen as being a violation of Article 4, Section 10, of the UTSU Bylaws.
 - b. Referenda may be endorsed by Candidates and Campaigners, so long as endorsements are not used to imply mutual organization between Candidates.

Quid Pro Quo

30. No Candidate running for a position on the UTSU Board of Directors or Executive Committee may solicit votes or political support from individuals or organizations in exchange for any form of promised or implied resources, promotion, or other benefit upon election to the UTSU.
- a. For greater certainty, no Candidate may make any form of offer or commitment to a club or student organization in exchange for political support or votes.

Pre-Campaigning & Unfair Advantage

31. No person or entity shall undertake any form of Campaigning before the beginning of the Campaign Period. At the discretion of the Chief Returning Officer, not adhering to this rule may result in the immediate disqualification of a Candidate.
32. Any Member seeking elected office with elevated access or proximity to the operations of the UTSU shall be obligated to take a leave of absence for the duration of the election.
33. Any Member seeking elected office shall not gain an unfair advantage or benefit by their position or level of access within the UTSU.
34. No part of any Campaign or Campaign material shall use UTSU resources, offices, facilities, or staff to gain any form of advantage over another Campaign or Candidate.

Community Standards

35. Candidates have an obligation to act in accordance with this Elections & Referenda Code and to participate in a way that does not undermine free and fair elections.
36. All persons who engage in elections must always follow these community standards:
- a. Candidates shall Campaign per the rules of Fair Play. Breaking the rules of Fair Play include, but are not limited to, breaching generally accepted community standards, libel, slander, and general sabotage of the reputation or Campaigns of other Candidates.

- b. Candidates are responsible for familiarizing themselves with policies, Bylaws, and Codes (e.g. Anti-Harassment, Code of Conduct) of the UTSU to ensure that they and their supporters adhere to relevant policies, Bylaws, and Codes.
- c. Candidates must engage in the UTSU election in a non-partisan manner, and not support or oppose any political party over the course of the election, nor may they advocate action on public policy positions for the benefit of any political party.
- d. No Campaign should use the private or confidential information of an eligible voter without the express consent of the eligible voter.
- e. No part of any Campaign shall create a serious risk of injury, death, property damage, or other grievous or serious harm to any individual or group of people.
- f. No part of any Campaign shall be hateful, bigoted, slanderous, defamatory, libelous, violent, malicious, dishonest, or otherwise intentionally inflammatory.
- g. No part of any Campaign shall create an environment that in any way facilitates the bullying or harassment of any person, including any vexatious or otherwise grossly inappropriate behaviour, touching, or speech.
- h. No part of any Campaign shall be sexually explicit, pornographic, overtly inappropriate, abusive, or exploitative in any way, and shall not involve in any way any person who is under the age of eighteen (18) years old.
- i. No part of any Campaign shall involve any intentional targeting of another candidate, sabotage, or other destructive activity or behaviour.
- j. No part of any Campaign shall infringe upon another person's intellectual property or privacy rights, and shall not solicit information from non-members.
- k. No part of any Campaign shall undermine or attempt to undermine the authority and the ability of the Chief Returning Officer and the Elections & Referenda Committee to perform their duties, including the voting process.
- l. No part of any Campaign shall disrupt or interfere with the operations or policies of locations and facilities where Campaigning is conducted. Any and all spaces where Campaigning is conducted shall be treated with respect.
- m. Co-Campaigning will result in disqualification. Any appearance or perception of running a slate in the elections process will be addressed by the CRO and may lead to penalties.

Campaign Materials

- 37. All Campaign materials must be registered with the Chief Returning Officer before being used during an election. Candidates must proactively confirm that the Chief Returning Officer has approved all materials and methods before disseminating.

38. For all Campaign materials, the design, text, imagery, dimensions, and medium must be submitted to the Chief Returning Officer and approved before being printed, manufactured, posted, or otherwise disseminated.
- a. Approval to circulate Campaign materials must be provided by the Elections Office (i.e. the Chief Returning Officer, or a Deputy Returning Officer) in writing by email. Dissemination prior to approval is unauthorized.
 - b. For websites in particular, the Chief Returning Officer must approve all current and future text and images posted on the website.
 - c. Private and or confidential information of members may not be used for disseminating campaign material without their prior consent.
 - d. Individual messages and emails shall not be subject to approval by the CRO, however, text used for mass-dissemination to two (2) or more people must be approved by the CRO.
39. For any and all Campaign materials, they must be original, legible, accessible and high-contrast where applicable, and made available in English.
- a. The use of other languages may be approved at the discretion of the Chief Returning Officer, however translations must be an appropriate and correct translation of the English version and certified by a UTSU-appointed translator.
 - b. All Campaign materials must have been created for the purpose of the election they are to be used in, and must not have been created for a separate purpose such as a different election, Campaign, or activity.

Social Media, Online Forums, Restricted Virtual Areas

40. Upon a recommendation by the Chief Returning Officer, the Elections & Referenda Committee may vote to suspend or terminate the use of social media by some or all members participating in an election if community standards are not being upheld.
41. Campaigning may only be conducted within online spaces that could reasonably be accessed by any UTSU Member, and may not be conducted in private or hidden online groups that cannot be observed by the Chief Returning Officer.
- a. The Chief Returning Officer may issue rulings allowing for Campaigning to be conducted using semi-public online spaces, such as large spaces which have been created for a particular academic or extracurricular interest or activity.
 - b. This section does not need to apply to private messages or team management, such as Campaign team group chats or other non-public communications.
42. New technologies may from time to time pose logistical challenges to the administration and execution of elections. The Chief Returning Officer shall be empowered to issue rulings which clarify how certain technologies may be used.

43. All Candidates may reshare UTSU materials on their personal platforms to share information to other Members. No additional commentary or edits can be added to UTSU materials that are shared.

Restrictions on Physical Campaign Materials

44. For physical Campaign materials, the following restrictions apply:
- a. Material size shall not exceed 29.7cm x 42cm (11" x 17").
 - b. Materials shall not exceed the quantities specified below:
 - i. Up to 3 banners not exceeding 2.75m x 0.92m (9' x 3').
 - ii. Up to 100 posters not exceeding 29.7cm x 42cm (11" x 17").
 - iii. Up to 250 fliers not exceeding 22cm x 28cm (8.5" x 11").
 - iv. Up to 500 handouts not exceeding 10.16cm x 15.24cm (4" x 6").
45. Campaign materials may count towards the limit of larger materials with the approval of the CRO.
46. All materials must be entirely recyclable and not printed with laminate.
47. No material may block, cover, or otherwise obstruct existing campaign material that has already been posted, and shall not be posted where not expressly permitted.
48. All materials must be spaced at least one (1) meter (3.3') apart in all directions. Groups of smaller materials, cumulatively not exceeding a size of 29.7cm x 42cm (11" x 17"), may be considered a single material.
49. No material may be removed by a competing Candidate or Campaigner without the express written consent of the Chief Returning Officer.
50. No material may be of any real monetary value, a food item, an animal, any other living being, a good, or a service. No quid pro quo, meaning the giving of a material or promise in exchange for assistance or votes, may be established.
51. All materials must be removed within 24 hours after the end of the Campaign Period.

Campaigning in the Student Commons

52. Campaigning in the Student Commons is permitted during the Campaign Period.
53. Approved Campaign materials can be shared in designated areas on the second and fifth floors of the Student Commons.
54. Bulletin boards, magnetic panels, and cork bulletin strips are available in designated areas where posting is permitted. Posting on painted walls, staircases, doors/windows, floors, or over any material already posted is forbidden.

- 55. Unauthorized posts in non-permitted locations will result in the removal of materials.
- 56. No Campaign materials are permitted within UTSU office or meeting spaces.
- 57. Public appearances or speeches related to elections can only be made during an information session organized by the CRO, ensuring equal access for all Candidates.

Restricted Areas & Conduct

- 58. Campaigning is strictly prohibited in Student Residences, except for open lobbies and foyers.
- 59. Any private areas that are not accessible to the public, spaces without permission from the owners or managers, events held by the UTSU or its partners, spaces prohibited by the Chief Returning Officer, and the UTSU office space are also off-limits for Campaigning.
- 60. No Candidate or Campaigner may provide a device to a member for voting. Members voting in elections must use their electronic device or a device provided by the Elections Staff to vote.
- 61. No Candidate or Campaigner may collect credentials or private information from Members that could be used to vote on behalf of a member, identify the vote of a Member, or otherwise compromise the rights and independence of any Member.

Participation in Other Debates or Forums

- 62. Candidates for all positions may also be invited to take part in forums hosted by clubs, faculties or other member-affiliated organizations.
- 63. Date, time and schedules for other debates or forums must be shared with the CRO prior to participation in the event.
- 64. In participating in other debates or forums, community standards must be followed at all times.

	AREA	ERC	Elections & Referenda Code
	POLICY	007	Violations & Penalties
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-007 | Violations & Penalties

Complaint Process

1. Member complaints regarding violations of this code must be submitted, within twenty-four (24) hours of the member becoming aware of the violation, to the Chief Returning Officer, using the **Elections Complaint Form**. No complaints shall be received any later than twenty-four (24) hours following the close of the voting period).
 - a. Once received, the Chief Returning Officer shall have forty-eight (48) hours to consider the merits of a complaint and prepare a response.
 - b. Once prepared, the Chief Returning Officer shall prepare and deliver a written ruling to both the Candidate and the complainant. If a complaint is verified and demerit points are assigned, the ruling shall be noted on the website.
 - i. Ruling notices on the website shall be provided in a chronological list, and shall include the number of demerit points and type of violation.
 - c. Following the ruling of the Chief Returning Officer, a Candidate shall have twenty-four (24) hours to appeal the decision to the Elections & Referenda Committee. Appeals must provide an explanation as to why the ruling of the Chief Returning Officer was incorrect, as well as a desired outcome or remedy.
 - d. Once received, the Elections & Referenda Committee shall have twenty-four (24) hours to convene, consider the merits of an appeal, and prepare a response.
 - e. Once prepared, the Elections & Referenda Committee shall deliver a written ruling to all candidates via email and noted promptly on the UTSU website.
 - f. Rulings of the Elections & Referenda Committee shall remain final, unless overruled by a two-thirds (2/3) vote of the UTSU Board of Directors.
2. If no complaints are submitted within twenty-four (24) hours of the close of the voting period, the election will be considered complete, and no further complaints will be heard. If complaints have been received, the election will only be considered complete with results official after appeals have been exhausted and a final ruling is rendered.

3. All rulings must be provided alongside compelling evidence of wrongdoing and relevant citations of where violations of Campaign rules and/or bylaws occurred. All complaints must be submitted by UTSU members and may not be anonymous; however the identity of members who submit complaints shall not be published.

Penalties

4. Penalties may be imposed on a member upon a ruling made by the Chief Returning Officer or the Elections & Referenda Committee, and may come in the form of demerit points, disqualification, expense limit reduction, or a recommendation to the UTSU Board of Directors that action be taken pursuant to Article 10 of the UTSU Bylaws.
 - a. Candidates seeking election to the role of President or Vice-President shall be disqualified upon receiving forty (40) demerit points.
 - b. Candidates seeking election to the role of Director-at-Large shall be disqualified upon receiving twenty (20) demerit points.
5. Penalties may be assigned to Candidates and members by the Chief Returning Officer or the Elections & Referenda Committee according to the following schedule:

Violation / Cause for Complaint	Potential Penalty
Non-compliance: management and finance	Up to 10 demerits per offense
Pre-Campaigning	<i>Disqualification</i>
Failure to take a leave of absence	<i>Disqualification</i>
Use of private/ confidential member information	Up to 10 demerits per offense
Violation of community standards	Up to 10 demerits per offense
Unauthorized Campaign materials	Up to 10 demerits per offense
Failure to report or submit records to CRO	Up to 10 demerits per offense
Improper translation of Campaign materials	Up to 5 demerits per offense
Non-compliance: physical materials restrictions	Up to 5 demerits per offense
Appearance of mutual organization, cross-campaigning, or slates	Up to 10 demerits per offense
Mutual organization, cross-campaigning, or slates	<i>Disqualification</i>
Non-compliance: social media and online forums	Up to 5 demerits per offense
Non-compliance: restricted areas and conduct	Up to 10 demerits per offense
Unauthorized Campaigners	Up to 5 demerits per offense
Quid pro quo	<i>Disqualification</i>
Violation of law, property damage, grievous harm	<i>Disqualification</i>

Unauthorized / vigilante enforcement of rules	Up to 5 demerits per offense
Frivolous, vexatious, baseless complaints / appeals	Up to 5 demerits per offense
Failure to abide by a request of the CRO	Up to 5 demerits per offense
Egregious violations of Fair Play / spirit of elections	<i>Disqualification</i>

6. All penalties will be determined at the discretion of the CRO. In principle,
 - a. First time violations made prior to the voting period may receive a reduced penalty;
 - b. Violations made during the voting period will receive the maximum penalty points for that offense.
7. Penalties assigned based on the design or creation of campaign materials will be assigned once per design of the material.
8. 'Posts', 'Stories' or equivalent forms of engagement that contain multiple images will be penalized once as a whole, per violation.
9. Multiples of the same violation may be grouped together as a single offense, or count as multiple offenses based on the discretion of the CRO.
10. In addition to or in place of a listed potential penalty, the CRO may choose to apply an appropriate form of discipline to the Candidate or Advocacy Committee found to have violated the Code. Such forms of discipline could include but are not limited to:
 - a. An acknowledgment of a violation by the Candidate or Campaigner, either publicly or privately to an affected party
 - b. A expense limit reduction or penalty
 - c. A campaign activity restriction
 - d. The removal of an individual from a campaign team or Advocacy Committee
 - e. Any other form of discipline, as determined by the CRO.

	AREA	ERC	Elections & Referenda Code
	POLICY	008	Amendment
	OWNERS	Elections & Referenda Committee	
	AFFECTS	Elections, organization-at-large, membership.	

ERC-008 | Amendment

Annual Review

1. The responsibility for maintaining the Elections & Referenda Code shall be delegated to the Chief Returning Officer (CRO). The CRO must review and approve changes before they are presented to the Elections and Referenda Committee, and subsequently to the Board of Directors for approval.
2. Amendments can only be approved by the UTSU Board of Directors according to Article 4, Section 11, of the UTSU Bylaws.
3. The Elections & Referenda Code shall be reviewed annually in at least one (1) meeting of the Elections & Referenda Committee, prior to the beginning of the Annual Election established in Article 4, Section 1, of the UTSU Bylaws.
 - a. The Elections & Referenda Committee shall call at least one (1) meeting to review the Elections & Referenda Code, and submit any recommendations, if any, to the Board of Directors for review.
 - b. Upon the required two-thirds (2/3) vote of the Board of Directors, any proposed amendments shall be adopted.

Emergency Amendment

4. The Elections & Referenda Committee may use the existing process to call a UTSU Board of Directors emergency board meeting, per Article 3, Section 6 of the UTSU Bylaws in order to consider emergency changes to the Elections & Referenda Code during an election.
 - a. It shall be the duty of the Elections & Referenda Committee to ensure that any emergency amendments are incorporated into the subsequent annual review.